

**JUSTIFICATION FOR EXCEPTION TO FAIR OPPORTUNITY
FOR A MULTIPLE AWARD CONTRACT ORDER (MAC)
Above the Simplified Acquisition Threshold (SAT)**

1. IDENTIFICATION OF AGENCY AND CONTRACTING ACTIVITY:

This is a Limited Source Justification. The requiring activity is the Combat Capabilities Development Command Soldier Center (DEVCOM SC) G6; the contracting activity is the Army Contracting Command, Aberdeen Proving Grounds, Natick Division (ACC-APG-NCD).

2. NATURE/DESCRIPTION OF CONTRACT ACTION:

This acquisition is conducted under the authority of 10 U.S.C. 2304a through 2304d. This is a limited source action to be awarded as a new task order and/or modification of an existing order to the one identified in paragraph 3 below. The placement of a **firm, fixed price order** is anticipated.

3. DESCRIPTION OF REQUIRED SUPPLIES/SERVICES:

The proposed acquisition is to provide mobile services for the DEVCOM SC workforce. It is intended to acquire the following:

(1) AT&T unlimited voice/text/data plan for the 275 supported iPhones, and unlimited data with Static IP addresses for 12 iPads and 2 Wireless hotspots. Unlimited international data for 20 lines that can be moved as needed. Strong Signal is needed at the Simulation and Training Technology Center (STTC) Orlando and at DEVCOM SC Natick

(2) Last generation device replacements as requested once the current Spiral 3 devices reach an age of 2 years, or once new Spiral 4 devices reach an age of 3 years. Once requested, replacement devices should be shipped to location. Current devices are provided under the existing contract. Therefore, if award goes to a non-incumbent, the existing devices would have to be returned to AT&T and new Spiral 4 devices would be needed at the start of the contract. Devices should not be pre-configured, as they will need to connect to a Mobile Device Management (MDM) server managed by the Defense Information Systems Agency (DISA).

4. IDENTIFICATION OF THE JUSTIFICATION RATIONALE AND/OR DEMONSTRATION OF CONTRACTOR'S UNIQUE QUALIFICATIONS:

The statutory authority which permits not providing each awardee a fair opportunity to be considered for each order exceeding \$10,000 issued under a multiple award contract is 10 U.S.C.

2304c, as implemented by FAR 16.505(b)(2) and, for orders exceeding \$250,000, DFARS 216.505-70(b)(2).

(a) Describe in detail reason for purchasing and why it is beneficial to the Army.

The workforce at DEVCOM SC requires a fast and flexible means of communication and the ability to access files and resources on the go. This is particularly important for TDY and outside continental U.S. (OCONUS) travel, but it also helps employees communicate more effectively in the office. This allows our directorates to better support the soldier.

(b) Reasons for not providing a fair opportunity to all awardees:

(1) For DoD, NASA, and the Coast Guard, the order satisfies one of the exceptions permitting the use of other than full and open competition listed in 6.302 (10 U.S.C. 3406(c)(5)). Specifically, FAR 6.302-1 Subparagraph (a)(2)(iii) states that services may be deemed to be available only from the original source in the case of follow-on contracts for the continued provision of highly specialized services when it is likely that award to any source would result in

(A) Substantial duplication of cost to the Government that is not expected to be recovered through competition; or

(B) Unacceptable delays in fulfilling the agency's requirements.

In this case, the agency has determined that award to a source other than the incumbent would result in an unacceptable delay in fulfilling agency requirements, lasting at least 3 months. As noted above, devices currently in use have already been configured by the Government to be used on an MDM server managed by DISA. This is a process that must be performed by agency personnel and cannot be completed by any of the contract vendors. Awarding to a new vendor would require the agency to return all existing devices to AT&T. The awardee would then have to provide all 275 new devices, which would then have to be provisioned by agency personnel and issued individually by appointment. This downtime would result in an unacceptable delay in fulfilling the government's mobile requirements and significantly impair the mission of the organization. In addition to the unacceptable delays in fulfilling mobility requirements, this would also cause a disruption and loss in productivity to other Cybersecurity mission requirements resulting from removing personnel from the standard, required mission essential work for them to provision new phones. Diverting manpower from mission essential work to provision new phones would set back the mission team 3 months and impact security of other user devices and the network as a whole.

Accomplishing this transfer without impact to mission tasks would mean increasing the disruption to mobile services to 6 months or more. Removing the interruption to mobile services would mean procuring a new 3+ month contract for current carrier while new

phones are received and provisioned, as existing Spiral 3 contract cannot be extended. This duplicative cost is in excess of approved budgets, which cannot exceed Fiscal Year (FY) 2024 levels during a Continuing Resolution (CR).

(2) When using this exception:

(A) Specify how recent the previous competitive order was and the number of times this exception has been used;

A competitive order has not been made before on Spiral 4, existing AT&T service has been provided over the past 10 years with Spiral 3 and Spiral 2.

(B) Discuss why the specific requirement continues;

Carrier imaging & deployment services would not work to ease burden since vendor technicians do not have capability to access DISA MDM server. Pre-imaged devices would need to be wiped and reimaged by Government technicians. A new 3-month contract for current carrier is in excess of approved budgets and in Continuing Resolution Authority (CRA) cannot exceed FY24 levels.

AT&T continues to be the only vendor with coverage that would be acceptable for our end users. Signal observed on personal phones under [REDACTED] and [REDACTED] showed 2 bars of service in some spots at Natick Soldier Systems Center site.

(C) Discuss why it would be of benefit to the Government for the specified contractor to continue this work.

Staying with AT&T would result in no loss of service and no unfunded additional cost for overlap of service providers since the current phones would not need to be replaced. The loss of 3 months of government IT mission support cannot be supported in a period where there's no option to increase staffing.

5. DETERMINATION OF THE BEST VALUE:

The contract did establish the prices for the service to be fair and reasonable. The ACC-APG-Natick Division Contracting Officer will determine, using the procedures in FAR 15.4, that the order represents the best value to meet the Government's needs.

6. DESCRIPTION OF MARKET RESEARCH:

The requiring activity and contracting activity have conducted market research among the multiple award contractors.

The Navy Spiral 4 Contract is a required contract vehicle. Reviewed pricing documents including all Spiral 4 vendors. We are limited to the vendors available through this contract. ATT is the current provider for DEVCOM Soldier Center. Switching to another provider would result in excess costs/mission lapse in service and lost critical IT support time for DEVCOM Soldier Center. Common operating locations are compared to vendor coverage maps, coverage is compared between employee personal phones under major carriers. An additional contract for services through Verizon is renewed on an annual basis for hotspots to address any coverage gaps. Requiring activity certifies that the requirement can be met by a commercial item and provides supporting documentation which is attached.

7. ANY OTHER SUPPORTING FACTS:

This procurement uses a multiple award contract (MAC) and will be solicited and awarded in accordance with FAR Subpart 16.5.

8. ACTIONS TAKEN TO REMOVE BARRIERS TO COMPETITION:

All future requirements will be handled on a case-by-case basis.

9. CONTRACTING OFFICE POINT OF CONTACT:

The point of contact is:

Contracting Office: ACC-APG-Natick Division
Name: Brandon Rivett
Telephone Number: (520) 691-1451
E-Mail Address: brandon.j.rivett.civ@army.mil

Technical/Requirements Certification:

I certify that the supporting data under my cognizance which are included in the justification are accurate and complete to the best of my knowledge and belief.

Typed Name: [REDACTED]

Date: 27 March 2025

Title: Information Technology Specialist

Signature: [REDACTED]

Contracting Officer Certification/Approval:

I hereby determine that the anticipated cost or price to the Government for this contract action will be fair and reasonable based upon a comparison to historical prices paid. The Government will execute a Determination of Fair and Reasonable Price before a task order is awarded.

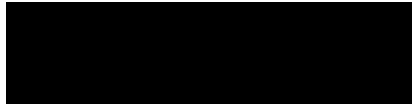
I certify that this justification is accurate and complete to the best of my knowledge and belief, and that completing this purchase as a sole source is in the best interest of the Government. Additionally, I approve this justification to limit competition subject to the availability of funds and provided that the services or supplies herein described have otherwise been authorized for acquisition.

Typed Name: BRANDON RIVETT

Date: 27 March 2025

Title: Contracting Officer

Signature:

A solid black rectangular box used to redact the signature of the Contracting Officer.